LAUSD AI Policy Bulletin: Data and Student Privacy Passages

Excerpted verbatim from *Guidelines for the Authorized Use of Artificial Intelligence (AI) for District Employees, Students, and Associated Persons, Policy Bulletin BUL-151113.0 (Los Angeles Unified School District, April 8, 2024)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. In the Policy section, an ellipsis also marks a page break in the source.

Policy (excerpt)

Source: pages 1–2

LAUSD is committed to utilizing new AI technologies, in particular, generative AI, in an ethical, transparent, and responsible manner, while recognizing the importance of protecting student and employee privacy and ensuring that the use of these technologies is consistent with ethical and equitable considerations.

In developing the District's AI policy, LAUSD prioritizes the safety and privacy of its students and staff as it seeks to aid and support them with modern technologies. Staff and students must be proactive about using … AI and ensuring the protection of confidential data and information in compliance with federal and state confidentiality laws.

Background (footnote 1, excerpt)

Source: page 2

In accordance with the District's Responsible Use Policy, students under the age of 13 are not permitted to use generative AI tools.

Initial Guidance from the U.S. Department of Education (excerpt)

Source: page 3

Emphasize Humans in the Loop. … Employees, students, and families must exercise control over AI software used in the school context in a hands-on method that ensures integrity and confidentiality of student and district information.

Align AI Models to a Shared Vision for Education. … Emphasizing data privacy and minimizing bias must be prioritized when using AI software.

Design Using Modern Learning Principles. … Modern learning principles encourage human regulation of any data provided to AI software …

Considerations Prior to Use of AI

Source: page 4

Prior to use, adoption, or purchase of any AI tool, District staff should ensure that the AI tool has been approved by the District for data privacy, including any applicable confidentiality laws or regulations that may apply to the data; and security requirements. AI tools must be vetted by the following offices prior to approved use:

- Procurement Services
- Information Technology Services

- Sponsoring District Department
- Office of the General Counsel
- Office of Labor Relations
- Additional offices depending on content.

Prior to use of AI tools with students, District personnel should ensure:

- The AI tool is District-approved;
- Parent/legal guardian/educational rights holder consent is obtained for the use of specific apps, as required.

Data Privacy and Security

Source: page 5

The District and individual District Users must ensure confidential, sensitive, and privileged information is protected when using AI. District users shall not share any confidential, sensitive, privileged or private information when using, prompting, or communicating with any AI tools. As described in LAUSD BUL-1077, Sensitive Information includes, but is not limited to, pupil records, employee personnel records, and health records, and such Sensitive Information requires additional safeguards.

District Users of AI tools must follow these data privacy and security guidelines:

- Prioritize protecting your own and others' confidential and sensitive information, especially students' personal data.
- Do not share your own or others' confidential, sensitive, or private information in AI prompts, including but not limited to pupil or employee record information or images, videos, or voice recordings. Bear in mind that AI tools generally take whatever users enter into a prompt and incorporate it into their systems/knowledge base for other uses.
- Do not share non-public information and protected information without approval from the Office of the General Counsel (OGC), the Office of Data and Accountability (ODA), and Procurement Services Division (PSD). See BUL-1077.2 regarding the District's information protection policy and BUL-6887.1 regarding LAUSD's pupil records confidentiality policy.
- Ensure that AI results used in District Information Systems are reviewed for any imbedded malware.
- District Users must comply with all applicable IT data security and data retention policies and procedures.

Attachment A, Glossary of Helpful Terms (excerpt)

Source: page 2 of Attachment A (PDF page 11)

Confidential Data: As defined in LAUSD Bulletin 6399-2, confidential data refers to District-related content such as (but not limited to) grade and exam information, attendance data, and behavior incidents.

Sensitive Information: Non-public Information and Protected Information as defined in LAUSD BUL 1077.2 Information Protection Policy. Examples include but are not limited to student records,

student and employee health records, and social security information.